

THE NEW ENTRANT SAFETY AUDIT

Every carrier that activates a United States Department of Transportation (USDOT) number enters an 18-month monitoring period, and an audit happens inside it. This is where the previous fourteen parts are checked. Read this one first, not last — everything it asks for is something you should have been building since day one.

15.1

WHAT IT ACTUALLY IS

49 CFR Part 385, Subpart D. A review of your records, not your driving. Most carriers who fail are not dangerous — they are disorganised.

DOCUMENTS

NOT A ROAD TEST

An auditor asks for files. If the file does not exist, the fact that you did the thing correctly is not evidence that you did it.

PASS OR FAIL

NO MIDDLE GRADE

You either demonstrated basic safety management controls or you did not. There is no partial credit and no discretionary allowance for being new.

18 MONTHS

THE MONITORING WINDOW

The audit occurs within it. Plan on being ready far earlier — carriers commonly report being contacted within the first year.

TWO SEPARATE WAYS TO FAIL

Under 385.321(a) you fail either by lacking the basic safety management controls described in Appendix A to Part 385, **or** by violating any one of the sixteen regulations listed in 385.321(b). They are independent. A carrier with tidy files still fails on a single automatic violation, and a carrier with none of those violations still fails if the controls are not there.

REFUSING IS NOT AN OPTION

385.337 addresses a new entrant refusing to permit the audit, and 385.335 allows a full compliance review in place of one. Neither route improves your position. Cooperating with a prepared file is the only version of this that ends well.

15.2

THE SIXTEEN AUTOMATIC FAILURES

49 CFR 385.321(b), verbatim from the regulation. Any one of these fails the audit regardless of everything else you have done.

VIOLATIONS THAT AUTOMATICALLY FAIL THE AUDIT

REGULATION THE VIOLATION

382.115(a) / (b)	Failing to implement an alcohol and controlled substances testing program
382.201	Using a driver known to have an alcohol content of 0.04 or greater for a saf
382.211	Using a driver who has refused a required test
382.215	Using a driver known to have tested positive for a controlled substance
382.305	Failing to implement a random testing program
383.3(a) / 383.23(a)	Knowingly using a driver without a valid commercial driver's license
383.37(b)	Allowing someone to drive on a permit or licence disqualified by a State, or
383.51(a)	Allowing a disqualified driver to drive
387.7(a)	Operating without the required minimum financial responsibility coverage

387.31(a) **The same, for a passenger-carrying vehicle**

391.15(a) **Knowingly using a disqualified driver**

391.11(b)(4) **Knowingly using a physically unqualified driver**

395.8(a) **Failing to require a driver to make a record of duty status**

396.9(c)(2) **Operating a vehicle declared out of service before repairs are made**

396.11(a)(3) **Failing to correct out-of-service defects listed by a driver before the vehi**

396.17(a) **Using a vehicle that has not been periodically inspected**

Fourteen of the sixteen are single occurrence. One instance, once, and the audit is failed. Only two carry a threshold: the duty status records under 395.8(a) and the periodic inspection under 396.17(a) require 51% or more of the examined records to be in violation. That distinction is rarely published, and it is worth knowing which fourteen leave you no margin at all.

Five of the sixteen are the drug and alcohol programme. Three are licensing and disqualification. Two are insurance. Three are maintenance and inspection. One is hours of service. If you are wondering where to spend your preparation time, the regulation has already told you.

WHAT THE AUDITOR ASKS FOR

Everything below has a part of this guide behind it. This section is the index.

— DRIVER QUALIFICATION FILES — PART TEN

One per driver including yourself, plus the separate driver investigation history file kept securely. The annual review note is the item most often missing.

— DRUG AND ALCOHOL PROGRAMME — PART NINE

Written policy, pre-employment negatives, the random selection pool and its records, Clearinghouse queries. Five of the sixteen automatic failures live here.

— HOURS OF SERVICE RECORDS — PART ELEVEN

Logs or time records for the review period, and evidence you checked them rather than merely collected them.

— VEHICLE MAINTENANCE FILES — PART TWELVE

One per vehicle, the schedule, the repair records, and the current annual inspection for every unit.

— PROOF OF INSURANCE — PART SIX

At the correct federal minimum, in force continuously, filed with the agency.

— ACCIDENT REGISTER — AND IT MAY BE EMPTY

An empty register that exists is a pass. No register at all is a finding, because it shows no control was in place to record one.

THE PRINCIPLE BEHIND ALL OF IT

The audit asks whether you exercised control over each area throughout the review period — not whether the paperwork looked right on the day. Records created the week before an audit tend to look exactly like records created the week before an audit.

15.4

IF YOU FAIL

Failure is not immediately fatal. It starts a clock, and the clock is short.

1

YOU RECEIVE A NOTICE

Stating that your new entrant registration will be revoked, and identifying what was found.

2

YOU SUBMIT CORRECTIVE ACTION

Evidence that you have actually fixed the deficiencies — not a promise to fix them. 385.319(c) sets the periods, and 385.323 allows FMCSA to extend the 60-day period by up to a further 60 days where it determines you are making a good faith effort, and the 45-day period by up to 10 days where evidence of corrective action has been submitted.

3

FMCSA DECIDES

385.325 covers the outcomes. Accepted, and you continue under the new entrant programme. Not accepted, and revocation and an out-of-service order follow.

4

REVIEW AND RE-APPLICATION EXIST

385.327 provides for administrative review and 385.329 for re-application. Both are slower and more expensive than passing the first time.

OPERATING UNDER AN OUT-OF-SERVICE ORDER

385.331 makes a new entrant that operates a commercial motor vehicle in violation of an out-of-service order subject to statutory penalties for each offence, adjusted for inflation. This is the point at which a paperwork problem becomes a financial catastrophe. If you are ordered out of service, stop.

15.5

COMING OUT THE OTHER SIDE

385.333. What "passing" actually buys you.

— THE DESIGNATION IS REMOVED — IN WRITING

If a safety audit has been performed within the 18-month period and you are not under an out-of-service order or a notice to remedy your safety management controls, FMCSA removes the new entrant designation and notifies you that your registration has become permanent.

— YOU ARE THEN TREATED LIKE EVERYONE ELSE — WHICH IS THE POINT

Thereafter FMCSA evaluates you on the same basis as any other carrier. No special scrutiny, and no special allowance either.

— REACHING 18 MONTHS UNDER A CORRECTION ORDER DOES NOT END IT — THE ORDER SURVIVES

A new entrant that reaches the conclusion of the period while under an order to correct is still under that order. The calendar does not rescue you.

— A COMPLIANCE REVIEW CAN STILL FIND YOU "UNFIT" — AND REVOKE

Being past the audit does not mean the file stops mattering. It means the file now matters permanently.

15.6

WHO TO CONTACT

FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION

Phone	1-800-832-5660
Hours	Monday to Friday, 8 AM to 8 PM Eastern
Ask	Which office covers your state for new entrant audits, and how you will be contacted

READ THE RULES YOURSELF

The list of sixteen	49 CFR 385.321(b) at ecfr.gov
The evaluation criteria	Appendix A to Part 385
Why	These are the actual standards you will be measured against, free, in about twenty minutes of reading

- 49 CFR 385.319
- 49 CFR 385.321
- 49 CFR 385.323
- 49 CFR 385.325
- 49 CFR 385.327
- 49 CFR 385.331
- 49 CFR 385.333
- Appendix A to Part 385

15.7

THE WHOLE THING, IN ONE LIST

- Entity formed, Employer Identification Number issued, names matching everywhere
- USDOT number and operating authority active, in the entity's legal name
- Process agents designated and the filing accepted
- Insurance in force at the correct federal minimum and filed by your insurer
- Unified Carrier Registration paid for the current year, in the correct bracket
- Apportioned plates and fuel tax licence if your vehicle qualifies

Form 2290 filed and the stamped Schedule 1 in hand

Drug and alcohol programme running, with a policy, a pool, and Clearinghouse queries

Driver qualification file complete on every driver, including yourself

The separate driver investigation history file, kept securely

Hours of service records being kept and reviewed, or short-haul time records if exempt

One maintenance file per vehicle, with a written schedule and dated records

Current annual inspection on every unit, documentation carried on the vehicle

An accident register, even if it is empty

A written lease meeting Part 376 for any equipment you do not own

YOU NOW KNOW MORE THAN MOST PEOPLE WHO SELL THIS

Everything in this guide is public, free, and written down. It is not hidden — it is just scattered across fifteen parts of federal regulation in language nobody writes for beginners. The people who charge hundreds of dollars to "handle it for you" are charging for the reading, not the work.

You can look up every rule cited here yourself at [ecfr.gov](https://www.ecfr.gov). If someone tells you something that contradicts it, the regulation wins. That is the whole advantage, and now it is yours.